

26STLC01619 26STLC01619

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C08%2F04%2F2026

Source SHA-256: 139dc168bc427f8fcd18cb220cc6c44b85e37f3a04fe2577ae5f19e20f0c49b0

Case Number: 26STLC01619 Hearing Date: August 4, 2026 Dept: 26

TENTATIVE RULING:

Defendants Valentino Harrison,
Esq., Brandy Estelle, Esq., Law Offices of Estelle & Kennedy, a
Professional Law Corporation's Petition to Compel and Enforce Mandatory Binding
Arbitration and Accompanying Award is denied without prejudice to filing and
serving an amended petition.

Analysis:

On March 11, 2026, Plaintiff Lloren Fletcher ("Plaintiff")
filed the instant action for breach of contract, common counts, and breach of
fiduciary duty against Defendants Valentino Harrison, Esq., Brandy Estelle,
Esq., Law Offices of Estelle & Kennedy, a Professional Law Corporation
("Defendants"). Defendants filed the instant Petition to Compel and Enforce
Mandatory Binding Arbitration and Accompanying Award on April 20, 2026. The
Petition was served on Plaintiff by first-class mail on the same date. No opposition
has been filed to date.

Discussion

Defendants' Petition

asks the Court to compel and enforce the mandatory binding arbitration
agreement between the parties, and to dismiss this action filed by Plaintiff.

The request is made pursuant to the California Arbitration Act ("CAA"), set forth at Code of Civil Procedure section 1281, et
seq.

and the Federal Arbitration Act, set forth at 9 U.S.C. § 2.

A petition under

Code of Civil Procedure section 1281, et seq. may be filed in lieu of an answer. (Code Civ. Proc., § 1281.7.) However, “[a] petition to compel arbitration is to be heard in the manner of a motion. (Code Civ. Proc., § 1290.2.) Factual issues on motions are submitted on affidavits or declarations (or oral testimony in the court's discretion). (Code Civ.Proc., § 2009; Haldane v. Haldane (1962) 210 Cal.App.2d 587, 593, 26 Cal.Rptr. 670.)” (Strauch v. Eyring (1994) 30 Cal.App.4th 181, 184.)

Code of Civil Procedure section
1281.2 states in relevant part:

On petition of a party to
an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.

(Code Civ. Proc., §§ 1281.2, subds. (a)-(b).)

The Petition is neither supported by a verification of the facts stated therein, nor by an affidavit attesting to those facts and authenticating the attached exhibits. Without any supporting evidence, the Court has no basis to find that the parties are governed by a binding arbitration, as Defendants claim. The Petition also points to a case referred to only as “Schatz v. Allen Matkins Leek Gamble Mallory LLP (2009).” (Pet., ¶44.) Merely providing a case name is not sufficient to cite legal authority. Under the California Rules of Court, case law citations must follow the format of the California Style Manual or The Bluebook: A Uniform System of Citation. (Cal Rules of Court, rule 1.200.) Both these style guides require that the case citation include the opinion title, the year of filing, the opinion's location by reference to the volume number, reporter abbreviation, and the page number on which the opinion begins, and the page number of the cited portion. (See Cal. Style Manual (4th ed. 2000), § 1.1, pp. 4-6; The Bluebook: A Uniform System of Citation, § 3.2, (Columbia L. Rev. Ass'n et al. eds. 22nd, 2025).)

Based on the

foregoing defects, the Petition to Compel is denied without prejudice to filing an Amended Petition that meets the substantive and formatting requirements required by law.

Conclusion

Defendants Valentino Harrison,
Esq., Brandy Estelle, Esq., Law Offices of Estelle & Kennedy, a
Professional Law Corporation's Petition to Compel and Enforce Mandatory Binding
Arbitration and Accompanying Award is denied without prejudice to filing and
serving an amended petition.

Moving party to give
notice.